

and Fisheries, references to a town council shall be substituted for references to a council of a county borough, and the expenses of any council shall be defrayed out of such rate as the council may appoint.

Saving for
other Acts.

9. The provisions of this Act shall be in addition to and not in derogation of the provisions of any other enactment relating to or affecting merchandise marks or the sale of any article with respect to which this Act applies.

Short title
and extent.

10.—(1) This Act may be cited as the *Agricultural Produce (Grading and Marking) Act, 1928.*

(2) This Act shall not extend to Northern Ireland.

CHAPTER 20.

An Act to amend the enactments relating to petroleum and to petroleum-spirit.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of 34 & 35
Vict. c. 105.
s. 2.

1. For the definitions of the terms "harbour" and "harbour authority" contained in section two of the *Petroleum Act, 1871*, there shall be substituted the following definitions :—

The term "harbour" means any harbour, whether natural or artificial, and any port, haven, estuary, tidal or other river, canal or inland navigation navigated by seagoing ships and, subject to the provisions of this Act, any dock :

The term "harbour authority" means any person or body of persons in whom are vested by or under any Act of Parliament powers and

duties of improving, maintaining or managing a harbour, so, however, that where, as respects any dock within a harbour, such powers and duties are separately vested by or under any Act of Parliament in any person or body of persons, that person or body shall as respects that dock be the harbour authority and the dock shall be deemed to be a separate harbour :

The term "dock" includes any pier, jetty or other place in or at which ships can ship or unship goods or passengers.

2. Any Order in Council made by His Majesty under section fourteen of the Petroleum Act, 1871, applying any provisions of the Petroleum Acts, 1871 to 1926, to any substance, may direct that such provisions shall apply to the substance with such modifications, if any, as may seem to His Majesty to be desirable having regard to the nature of the substance to which the Order relates.

Amendment
of 34 & 35
Vict. c. 105.
s. 14.

3. Section five of the Locomotives on Highways Act, 1896 (which empowers a Secretary of State to make regulations as to the keeping and use of petroleum or of any other inflammable liquid or fuel for the purpose of light locomotives), shall cease to have effect and the following provisions shall have effect in lieu thereof :—

Repeal and
re-enact-
ment with
amendments
of 59 & 60
Vict. c. 36
s. 5.

"(1) The Secretary of State may make regulations as to the keeping and use of petroleum-spirit by persons intending to use it for the purpose of any class of motor vehicles, motor boats, aircraft, or engines specified in the regulations, and any such regulations may exempt the keeping and use of petroleum-spirit by persons intending to use it for the purpose of any such class as aforesaid to which the regulations apply from the operation of any of the provisions of the Petroleum Acts, 1871 to 1928, relating to byelaws as to ships carrying petroleum-spirit, and as to the loading, conveyance, and landing of such spirit in and upon canals, notices by the owner or master of ships carrying petroleum-spirit, labels on vessels containing petroleum-spirit, licences

for keeping petroleum-spirit, and regulations as to the conveyance of petroleum-spirit by road.

“(2) All regulations made under this section shall be laid before each House of Parliament as soon as may be after they are made, and if an Address is presented to His Majesty by either House of Parliament within the next subsequent forty days on which that House has sat next after such regulation is laid before it, praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new regulation.

“(3) If any person contravenes or attempts to contravene any regulation made under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the offence occurs or continues, and the court before whom any person is convicted under this subsection may order that the petroleum-spirit in respect of which the offence was committed, and any vessel in which it is contained, be forfeited or otherwise dealt with in such manner as the court thinks fit.”

Regulations
as to classes
of petroleum
likely to be
dangerous or
injurious to
health.

4.—(1) If the Secretary of State is satisfied that any class of petroleum-spirit is, by reason of the nature thereof or of any substance mixed therewith, likely to be dangerous or injurious to health either generally or in the case of any class of persons, he may make such regulations as appear to him to be reasonably practicable and to meet the necessity of the case, and in particular for—

- (a) requiring the observance of such precautions as may be prescribed for the protection of persons employed or engaged in handling or using petroleum-spirit of that class in connection with any trade or business; and
- (b) requiring persons selling to the public petroleum-spirit of that class to give, in such manner as may be prescribed, warning to purchasers of petroleum-spirit of that class as to the dangers

thereof and the precautions to be observed with respect thereto; and

- (c) prohibiting the sale or use of petroleum-spirit which he may by order declare to be so dangerous or injurious to health that precautions for the protection of persons employed or engaged in handling or using such petroleum-spirit are impracticable; and
- (d) the publication and supply of copies of the regulations; and
- (e) the enforcement of the regulations in any district by the local authority empowered under the principal Act to grant petroleum-spirit licences in that district :

Provided that any such regulations extending to England shall be made after consultation with the Minister of Health.

(2) All regulations made under this section shall be laid before each House of Parliament as soon as may be after they are made, and if an Address is presented to His Majesty by either House of Parliament within the next subsequent forty days on which that House has sat next after such regulation is laid before it, praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new regulation.

(3) If any person contravenes or attempts to contravene any regulation made under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the offence occurs or continues, and the court before whom any person is convicted under this subsection may order that the petroleum-spirit in respect of which the offence was committed, and any vessel in which it is contained, be forfeited or otherwise dealt with in such manner as the court thinks fit.

5.—(1) For the purpose of preserving for the enjoyment of the public the amenities of any rural scenery or of any place of beauty or historic interest or of any public park or pleasure promenade, or of any street or place which is of interest by reason of its picturesque

Byelaws as
to petroleum
filling
stations.

character, the council of any county or borough may make byelaws—

- (a) regulating the appearance of petroleum filling stations; or
- (b) prohibiting the establishment of petroleum filling stations

in any part of their area to which the byelaws apply, and, without prejudice to the generality of the foregoing provisions, any such byelaws regulating the appearance of petroleum filling stations may, in particular, require compliance with such provisions as may be contained in the byelaws as to the position, design, size, colour and screening of petroleum filling stations or of any parts thereof :

Provided that—

- (i) as respects the City of London, the powers and duties conferred and imposed by this section shall be exercised and performed by the common council of the City of London instead of by the London County Council; and
- (ii) no byelaws made under this section by the council of any county shall have effect in any borough within the county; and
- (iii) nothing in any byelaws regulating the appearance of petroleum filling stations shall prevent the use in any place to which the byelaws apply of any pump or other apparatus approved for use in such places by the Secretary of State, and in making any such byelaws a council shall make provision for exempting any petroleum filling station established at the time of the making of the byelaws from any restrictions requiring structural alterations for such period not being less than two years from that time as they may think fit; and
- (iv) in making any byelaws prohibiting the establishment of petroleum filling stations a council shall have regard to the need for reasonable facilities for the supply of petroleum in or near the part of their area to which the byelaws apply.

(2) Any part of the area of a council to which byelaws or a draft of any byelaws made under this section apply shall be distinctly marked and shown on plans to be signed by and deposited with the clerk of the council making the byelaws, and the said plans shall be at all reasonable times thereafter open for the inspection of the public without charge.

(3) No byelaws made under this section shall come into force until confirmed by the Secretary of State, and before submitting any such byelaws to the Secretary of State, the council by whom the byelaws were made shall, in such manner as may be directed by the Secretary of State, publish a draft thereof, together with notice of the place where the plans marked in accordance with the provisions of this section may be inspected, and of the intention of the council to apply for the confirmation of the byelaws.

(4) The Secretary of State may confirm any byelaws submitted to him under this section, with or without any modifications, and any byelaws so confirmed by the Secretary of State shall be published by the council by whom the byelaws were made in such manner as the Secretary of State may direct.

(5) Where byelaws made under this section are in force prohibiting the establishment of petroleum filling stations in any part of the area of a council, the council may, with a view to securing the removal of all such stations from that part of their area, serve upon every occupier of a petroleum filling station established therein before the date on which the byelaws came into force a notice requiring him to remove it within such period, not being less than six months after the service of the notice, as may be specified in the notice, and any such notice may be addressed to the "Occupier" without further name or description and may be served either by delivering it or leaving it at, or by sending it by post as a registered letter to, the usual or last known place of abode of the occupier, or if his place of abode is not known, by fixing it on some conspicuous part of the petroleum filling station :

Provided that any person upon whom such a notice is served shall be entitled to recover from the council by whom it was served any expenses reasonably incurred

by him in carrying out the directions contained in the notice, and shall, if he makes a claim within twelve months after the service of the notice, be entitled to recover from the council compensation for any loss sustained by him in direct consequence of the requirements of the notice, and any question in dispute as to whether compensation is payable under this subsection or as to the amount of any compensation so payable shall be determined by a single arbitrator appointed by agreement between the parties or, in default of such agreement, appointed by the Secretary of State.

(6) The occupier of any premises used or intended to be used as a petroleum filling station shall have power, notwithstanding anything in any conveyance or in any lease or other agreement, to do all such things as may be necessary for complying with the requirements of any byelaw made or notice served under this section; and where a notice has been served upon any person under this section the council by whom the notice was served may, with his consent, do on his behalf anything necessary for complying with the requirements of the notice.

(7) In the event of a contravention of any byelaw made or notice served under this section, the person contravening the byelaw or notice shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the contravention occurs or continues, and if, after any person has been so convicted in respect of a contravention of any byelaw made under this section prohibiting the establishment of petroleum filling stations or in respect of a contravention of any notice served under this section requiring the removal of any such station, the petroleum filling station is not removed within such time as the court may allow, the council by whom the byelaw was made or the notice served shall have power to do all such acts as may be necessary for the removal thereof, and any expenses so incurred by a council in removing any petroleum filling station established in contravention of any such byelaw as aforesaid shall be recoverable from the person convicted summarily as a civil debt.

(8) Any expenses incurred by a county council under this section shall be defrayed as part of their expenses for general county purposes.

(9) The council of any urban district shall have power to enforce within their district any byelaws in force under this section, and any expenses incurred by a district council under this subsection shall be defrayed as part of their general expenses.

(10) In the application of this section to Scotland, the expression "borough" shall mean "burgh," and any expenses incurred by a county or town council under this section shall be defrayed out of such rate leviable by the council and payable by owners and occupiers in equal proportion as the council may determine.

6.—(1) Every canal company shall have power to make byelaws regulating the loading, conveyance and landing of petroleum-spirit in and upon the canal under their jurisdiction, and as to the precautions to be observed with respect thereto, and as to the due enforcement of the byelaws.

Byelaws as to loading, conveyance and landing of petroleum-spirit in and upon canals.

(2) No byelaws made under this section shall come into force until confirmed by the Minister of Transport (in this Act referred to as "the Minister"), and before submitting any such byelaws to the Minister, the canal company shall, in such manner as may be directed by the Minister, publish a draft thereof together with notice of their intention to apply for the confirmation of the byelaws.

(3) The Minister may confirm any byelaws submitted to him under this section with or without any modifications, and any byelaws so confirmed by the Minister shall be published by the canal company in such manner as the Minister may direct.

(4) If any person contravenes or attempts to contravene any byelaw made under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the offence occurs or continues.

(5) Section forty of the Railway and Canal Traffic Act, 1888 (which makes provision as to the byelaws of canal companies), shall not apply to byelaws made under this section.

51 & 52 Vict.
c. 25.

7. In this Act and for the purposes of the Interpretation Act, 1871 to 1926, the following expressions shall have the following meanings:

Interpreta-
tion.

have the meanings hereby respectively assigned to them, that is to say :—

- 36 & 37 Vict.
c. 48.
- “Amenities,” in relation to any place, includes any view of or from that place :
 - “Canal” and “canal company” have respectively the same meanings as in the Regulation of Railways Act, 1873 :
 - “Contravention” includes, in relation to any provision, a failure to comply with that provision, and the expression “contravene” shall be construed accordingly :
 - “Motor vehicles” includes all mechanically propelled vehicles intended or adapted for use on roads :
 - “Petroleum filling station” means any premises or place used or intended to be used by way of trade or for purposes of gain for fuelling motor vehicles with petroleum, and includes any building, advertisement, pump, or other apparatus in or used in connection with any such premises.

Drafting
and minor
amend-
ments.

8. The amendments in the second column of the First Schedule to this Act (which relate to matters of drafting and to other matters of minor detail) shall be made in the enactments specified in the first column of that Schedule.

Amendment
of 34 & 35
Vict. c. 105.
s. 15, as
regards
Scotland.

9. Section fifteen of the Petroleum Act, 1871, shall, in so far as it relates to Scotland, cease to have effect, and the following provisions shall apply to the prosecution of any offence or the recovery of any penalty (in which expression any money or expenses directed to be recovered as penalties are included) under the Petroleum Acts, 1871 to 1926, or under this Act in Scotland :—

- (1) Any offence may be prosecuted in a court of summary jurisdiction or on indictment and any penalty shall be recoverable on conviction by a court of summary jurisdiction or on indictment, provided that no court of summary jurisdiction shall, except in the case of an offence which involves a fine for every day on which the offence occurs or continues, have power to

impose a penalty exceeding fifty pounds and no court of summary jurisdiction other than the sheriff court shall have power to impose a penalty exceeding twenty pounds :

- (2) The expression " court of summary jurisdiction " shall have the like meaning as in the Summary Jurisdiction (Scotland) Acts :
- (3) Any petroleum, petroleum-spirit, or other substance, or thing ordered by a court to be forfeited may be sold or otherwise disposed of in such manner as the court shall direct :
- (4) Any penalty recovered and the proceeds of any forfeiture sold shall be paid to the King's and Lord Treasurer's Remembrancer where the court is the sheriff court, to the county clerk where the court is the justice of the peace court, and to the treasurer of the burgh where the court is the burgh or police court.

10.—(1) This Act may be cited as the Petroleum (Amendment) Act, 1928, and this Act and the Petroleum Acts, 1871 to 1926, may be cited together as the Petroleum Acts, 1871 to 1928.

Short title,
citation,
construc-
tion, extent
and repeal.

(2) Except where the context otherwise requires, references in this Act to the Petroleum Acts, 1871 to 1926, or to any of those Acts, shall be construed as references to those Acts as amended by this Act, and this Act shall be construed as one with those Acts.

(3) This Act shall not extend to Northern Ireland.

(4) The enactments specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule :

Provided that any regulations made under section five of the Locomotives on Highways Act, 1896, shall have effect as if made under section three of this Act, and in so far as any such regulations relate to any substance other than petroleum-spirit, the said section three shall be deemed to have been applied to that substance under section fourteen of the Petroleum Act, 1871.

SCHEDULES.

Section 8.

FIRST SCHEDULE.

MINOR AMENDMENTS.

Enactment to be amended.	Amendment.
The Petroleum Act, 1871 :	
Section 4 -	- After the word "landing" there shall be inserted the words "and for providing for the due enforcement of the bye-laws" and after the word "section" where that word secondly occurs there shall be inserted the words "or that such byelaws as are in force are insufficient."
Section 6 -	- The words "by land or water" shall be omitted; for the words "the United Kingdom" there shall be substituted the words "Great Britain"; after the word "exposed" in both places where that word occurs there shall be inserted the words "or offered"; after the words "attached thereto" there shall be inserted the words "or, where that is impracticable, displayed near there- to,"; for the words "stating the description of the petroleum, with the addition of" there shall be substituted the words "showing the words 'Petroleum-Spirit' and"; and at the end of the section there shall be inserted the following proviso :— "Provided that, for the purposes of the foregoing provision, petroleum-spirit carried on any motor-vehicle, ship, boat, or aircraft but intended to be used only for the purpose thereof shall not be deemed to be conveyed."

Enactment to be amended.	Amendment.	1st Sch. —cont.
The Petroleum Act, 1871— <i>cont.</i>		
Section 9 -	- The words "shall be valid if signed by " two or more persons constituting the " local authority, or executed in any " other way in which other licences, if " any, granted by such authority, are " executed. Licences " shall be omitted.	
Section 10 -	- For the words " under the hand or hands " of one or more of the persons consti- " tuting " there shall be substituted the words " signed by the clerk or secre- tary of "; after the words " ten days " there shall be inserted the words " or " within such further time as the Secre- " tary of State may allow," and after the words " as the case may be " there shall be inserted the words " shall be in " force for such time and be subject " to such provisions as to renewal as " may be specified in the licence and "	
Section 11 -	- For the words " certified by the clerk or " some member " there shall be sub- stituted the words " signed by the " clerk or secretary "; the words " or " producing some other sufficient autho- " rity " shall be omitted; after the word " exposing " there shall be inserted the words " or offering "; the words " be " deemed to be a portion of the costs " of the proceedings against him and " shall " shall be omitted; for the word " accordingly " there shall be substituted the words " and shall be " recoverable as part of the costs of the " proceedings against him "; and the words " out of any funds for the " time being in their hands and, in case " the local authority are the justices, " out of the county rate " shall be omitted.	
Section 12 -	- After the word " who," in both places where that word occurs, there shall be inserted the words " , by himself or by " anyone in his employ or acting by " his direction or with his consent."	

1ST SCH.
—cont.Enactment to be
amended.

Amendment.

The Petroleum Act,
1871—cont.

Section 13 - - After the word “exposed,” in both places where that word occurs, there shall be inserted the words “or offered”; after the words “petroleum-spirit” in both places where they occur in the second and third paragraphs of the section, and after the word “petroleum,” where it occurs in the said second paragraph, there shall be inserted the words “or vessel”; in the fourth paragraph of the section there shall be inserted after the word “place” the words “ship or vehicle”; for the words “to forfeit all” there shall be substituted the words “may be ordered by the court to forfeit any”; and at the end of the section there shall be inserted the words “with or without any vessel in which it is contained.”

Section 15 - - In the first paragraph, after the word “may” there shall be inserted the words “and, except in the case of an offence which involves a penalty exceeding fifty pounds, shall.”
In proviso 1, after the words “shall not,” there shall be inserted the words “except in the case of an offence involving a fine for every day on which the offence occurs or continues”; and proviso 6 shall cease to have effect.

Section 16 - - After the words “harbour authority,” in each place where those words occur, there shall be inserted the words “or canal company.”

The Petroleum Act,
1926 :

Section 6 - - After the word “exposes” there shall be inserted the words “or offers”; after the word “contravention” where that word secondly occurs in subsection (2) there shall be inserted the words “occurs or.”

Enactment to be amended,	Amendment.	1st SCH. —cont.
The Petroleum Act, 1926—cont.		
Section 7 -	- After the word “contravention” there shall be inserted the words “occurs or” and after the word “failure” there shall be inserted the words “occurs or.”	
Section 8 -	- The word “annually” shall be omitted, and for the words “in accordance with” there shall be substituted the words “at the rates shown in.”	
First Schedule -	For the initials “B.W.G.” in all places where they occur in Part I. of the Schedule there shall be substituted the initials “I.W.G.”; and at the end of the said Part I. there shall be inserted the words “In this Schedule ‘I.W.G.’ means the denominations of standards approved by Order in Council made under the Weights and Measures Act, 1878, and dated the twenty-third day of August, eighteen hundred and eighty-three, known as the Imperial Wire Gauge.” In the paragraph of Part I. of the Schedule entitled “ <i>Oil cup thermometer</i> ,” in the sub-paragraph relating to “Immersion,” for the figure “2·25” there shall be substituted the figure “2·4.”	
Second Schedule	For the words “Fee payable” there shall be substituted the words “Rate per annum of fees payable.”	
Third Schedule -	In paragraph 1 for the words from “The penalties to be annexed to any breach” to “the breach of regulation has taken place” there shall be substituted the words “If any person contravenes or attempts to contravene any regulation made under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the offence occurs or continues, and the court before whom any person is convicted under this subsection may order that the petroleum-spirit in respect of which the offence was	

1ST SCH.
—*cont.*Enactment to be
amended.

Amendment.

The Petroleum Act,
1926—*cont.*Third Schedule—
cont.

“ committed and any vessel in which
“ it is contained be forfeited or other-
“ wise dealt with in such manner as the
“ court thinks fit.”

In paragraph 3, for the words “ incur a
penalty ” there shall be substituted the
words “ be liable on summary con-
“ viction to a fine ”; and after the word
“ failure,” where that word secondly
occurs, there shall be inserted the words
“ occurs or ”.

In paragraph 4, for the words “ this Act
“ is ” there shall be substituted the
words “ the provisions of this Act or
“ of any regulations made thereunder
“ are ” and after the words “ this Act ”
where those words secondly occur there
shall be inserted the words “ or of any
“ regulations made thereunder ”; and
after the word “ fine ” there shall be
inserted the words “ not exceeding fifty
“ pounds, or on conviction on indict-
“ ment to a fine ”,

Section 10.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. 105.	Petroleum Act, 1871	In section six the words “ by “ land or water ”; in section nine the words “ shall be valid “ if signed by two or more of “ the persons constituting the “ local authority, or executed “ in any other way in which “ other licences, if any, gran- “ ted by such authority are “ executed. Licences ”; in section eleven the words “ or

Session and Chapter.	Short Title.	Extent of Repeal.	2ND SCH. —cont.
34 & 35 Vict. c. 105— <i>cont.</i>	Petroleum Act, 1871 — <i>cont.</i>	“ producing some other sufficient authority,” the words “ be deemed to be a portion of the costs of the proceedings against him and shall,” and the words “ out of any funds for the time being in their hands, and in case the local authority are the justices, out of the county rate ”; in section fourteen the words from “ subject to the following qualifications ” to the end of the section. In section fifteen, proviso 6.	
59 & 60 Vict. c. 36.	Locomotives on Highways Act, 1896.	Section five.	
16 & 17 Geo. 5. c. 25.	Petroleum Act, 1926	In section eight the word “ annually.”	

CHAPTER 21.

An Act to amend the Dogs Act, 1906.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Dogs Act, 1906 (hereinafter referred to as “ the principal Act ”), shall have effect as if section one thereof (which imposes liabilities on the owner of a dog for injuries done by that dog to cattle) applied to injuries done to poultry as it applies to injuries done to cattle; and accordingly the words “ or poultry ” shall be inserted in that section after the word “ cattle ” in both places where that word occurs.

Owners of dogs to be liable for injury to poultry.
6 Edw. 7.
c. 32.